RESOLUTION 2026-041

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF TULARE CALLING AN ELECTION IN THE CITY OF TULARE TO BE CONSOLIDATED WITH THE CITY'S NEXT GENERAL MUNICIPAL ELECTION ON NOVEMBER 3, 2026 AND SUBMITTING TO THE ELECTORS A BALLOT MEASURE TO INCREASE THE CITY'S SALES AND USE TAX BY ONE PERCENT (ONE CENT) BY AMENDING CHAPTER 5.78 (TRANSACTIONS AND USE TAX FOR GENERAL PURPOSES), ESTABLISHING THE POLICIES AND PROCEDURES FOR SUCH AN ELECTION, REQUESTING THAT TULARE COUNTY PROVIDE ELECTION SERVICES, DIRECTING THE CITY ATTORNEY TO PREPARE AN IMPARTIAL ANALYSIS, AND AUTHORIZING THE FILING OF REBUTTAL ARGUMENT

WHEREAS, the health and safety of all residents in the City of Tulare is the City's top priority; and

WHEREAS, as part of the City's effort to meet the needs of the community, the City has been exploring the addition of a General Sales Tax measure to the November 3, 2026 election ballot; and

WHEREAS, the City proposes an increase in the amount of one percent (one cent) to the existing Transactions and Use Tax (Sales Tax) as directed by the City Council; and

WHEREAS, the proposed, locally enacted Sales Tax measure is projected to generate general fund revenue of approximately $16,000,000 annually; and

WHEREAS, money raised by this measure would be used for community priorities; and

WHEREAS, local, voter-approved funding for essential services will provide a guaranteed source of funding for the City of Tulare; and

WHEREAS, the City will continue its high standards for fiscal accountability and transparency regarding this measure to include independent financial audits and yearly reports to the community to ensure City funds are spent responsibly for the community's priorities; and

WHEREAS, pursuant to California Revenue and Taxation Code Section 7285.9, the City of Tulare has the authority to levy a Transactions and Use ("Sales") Tax for general purposes, and subject to voter approval; and

WHEREAS, Article XIIIC, Section 2(b) of the California Constitution requires that any general tax, such as the Sales Tax, must be approved by a majority vote of the voters voting on the issue; and

WHEREAS, Article XIIC, Section 2(b) of the California Constitution requires that an election by the voters to approve a general tax must be consolidated with a statewide general election at which members of the City Council will be elected; and

WHEREAS, November 3, 2026 is the date of the statewide general election at which members of the City Council will be elected; and

WHEREAS, the City Council believes that it is in the best interests of the City of Tulare to submit the proposed one percent (one cent) upward adjustment to the Sales Tax to the voters of the City.

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Tulare, as follows:

Section 1. The City Council of the City of Tulare hereby finds and determines that the foregoing recitals are true and correct.

Section 2. The City Council of the City of Tulare hereby calls an election at which it shall submit to the qualified voters of the City of Tulare a measure that, if approved, would increase the Transactions and Use Tax by one percent (1%) or one cent to fund general services in the City. This measure shall be designated by letter by the Tulare County Registrar of Voters.

Section 3. The ballot language for the proposed measure shall be as follows:

CITY OF TULARE SERVICES MEASURE	
Shall the measure funding City of Tulare general services, such as maintaining 911 emergency/fire/paramedic/police response; preventing crime and gang activity; recruiting/retaining police, firefighters, paramedics; keeping public areas/parks clean/safe; repairing roads/potholes; addressing homelessness; protecting local drinking water sources; retaining/attracting local businesses, by increasing the existing sales tax by 1¢, providing approximately $16,000,000 annually until ended by voters, requiring independent audits, public spending disclosure, all funds used locally, be adopted?	YES
	NO

Section 4. The proposed measure to be submitted to the voters is more completely described in the ordinance attached hereto as Exhibit A, which is incorporated herein by this reference. The City Council hereby approves the proposed ordinance, in the form thereof, and its submission to the voters of the City at the November 3, 2026 election. The full text of the measure shall be printed in the ballot materials and be available for inspection in the City Clerk's office and on the City's website at www.tulare.ca.gov.

Section 5. Pursuant to Section 10400 et seq. of the California Elections Code, the Tulare County Board of Supervisors is requested to consolidate the election with other elections held on the same day in the same territory or in the territory that is part of the same.

Section 6. The Tulare County Board of Supervisors is authorized to canvass the returns of the election pursuant to Section 10411 of the California Elections Code.

Section 7. The Tulare County Board of Supervisors is requested to permit the Tulare County Registrar of Voters to render all services specified in Section 10418 of the California Elections Code relating to the election, for which services the City agrees to reimburse the County of Tulare, in accordance with current County pro-rations and allocation procedures.

Section 8. The City Clerk shall file a certified copy of this resolution with the Tulare County Board of Supervisors and Tulare County Registrar of Voters.

Section 9. The City Attorney shall prepare an impartial analysis of the measure. Any person or persons may file an argument either for or against the ballot measure. An argument for or against the measure shall not exceed 300 words in length. If more than one argument is submitted for the measure, or more than one argument against the measure, the City Clerk shall select the argument to be included with the ballot materials. Rebuttal arguments shall be permitted pursuant to applicable law.

PASSED, APPROVED, AND ADOPTED by the City Council of the City of Tulare this 2nd day of June 2026, by the following vote:

Ayes: Dennis A. Mederos, Stephen C. Harrell, Jose Sigala, Terry A. Sayre, Patrick Isherwood

Patrick Isherwood (Jun 9, 2026 16:26:25 PDT)

Patrick Isherwood, President of the Council and Ex-Officio Mayor

ATTEST:

Marc Mondell, City Clerk

By Melissa Wilcox, Chief Deputy City Clerk

The presence of an electronic signature certifies that the foregoing is a true and correct copy as approved by the Tulare City Council.